

24STCV13163 24STCV13163

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Finnegan v 531 Fairfax Inc., et al. 24STCV13163

Plaintiff's motion for terminating, issue, and evidentiary sanctions against Defendant 531 Fairfax Inc. dba Ubud LA ("Defendant 531") requests an order striking Defendant's answer and entering its default, or alternatively, imposing issue sanctions deeming established facts Defendant has refused to disclose during discovery, or alternatively, evidentiary sanctions prohibiting Defendant from introducing evidence concerning matters for which it has failed to provide discovery, and also awarding Plaintiff monetary sanctions of \$5,400.

Background

This motion arises out of Defendant 531's long-running lack of compliance with court orders. On July 31, 2025, the Court granted Plaintiff's Motion to Compel Discovery and ordered Defendant 531 to serve verified responses to form and special interrogatories and document requests and to produce responsive documents by August 14, 2025. The Court also awarded sanctions of \$1,800.00 jointly and severally against Defendant 531 and its counsel, payable by August 14, 2025.

On February 10, 2026, the Court denied Defendant 531's motion to set aside the July 31, 2025 order. The Court also denied Defendant 531's motion for a protective order with respect to documents requested by Plaintiff. As the Court stated in its order, the parties' correspondence demonstrated that Plaintiff had stipulated to the protective order but Defendant 531 had not yet filed the stipulation and proposed order granting the protective order. The Court denied the motion for

protective order given the parties' agreement, and ordered Defendant 531 to file the stipulation and proposed order. The Court also awarded sanctions of \$6,650 jointly and severally against Defendant 531 and its counsel.

On May 5, 2026, the Court granted in part and denied in part Plaintiff's motion to compel further compliance and request for sanctions. The Court granted Plaintiff's request for further monetary sanctions of \$3,600, payable by June 5, 2026, based on Defendant 531's misuse of the discovery process by failing to comply with the July 31, 2025 order to provide verified written responses to the form and special interrogatories and document requests and to pay the \$1,800 in sanctions.

As the Court noted in its May 5, 2026 order, while Defendant 531 attached responses to its opposition to the motion, the responses were grossly deficient and established noncompliance with the July 31, 2025 order. First, the responses were on behalf of "Answering Party Benelisha Group dba ADKT LA," another defendant that is not Defendant 531. Second, the purported verifications do not comport with the verification requirement set forth in Code of Civil Procedure Section 2015.5. Third, the signature on the purported verification was unintelligible. Without proper code compliant verifications, the responses "are tantamount to no responses at all." (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.)

The Court's May 6, 2026 order also denied Plaintiff's request for an order to comply with a prior court order, concluding that Plaintiff can file a motion for further sanctions if Defendant 531 continued to not comply with court orders. Plaintiff then filed the instant motion for terminating/issue/evidence/monetary sanctions, which Defendant 531 opposes.

Analysis

Ultimate discovery sanctions are justified where there is a willful discovery-order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.

Plaintiff's motion contends that Defendant 531 has still not complied with the July 31, 2025 order to provide verified written responses and pay sanctions of \$1,800, as well as the February 10, 2026 order to file the

stipulation for a protective order and proposed order, and to pay sanctions of \$6,650. Plaintiff contends that the prior monetary sanctions orders totaling \$8,450 have not resulted in compliance by Defendant 531 and thus escalating sanctions is appropriate.

Defendant 531 opposes Plaintiff's requested relief.

Defendant 531 argues it served "corrected" non-substantive form corrections and produced documents, and that Plaintiff never sought to compel further responses from Defendant 531. The Court already concluded back in May that Defendant 531 had served documents (albeit it extremely late), so Defendant 531's production is not at issue; its written discovery responses are the focus of this motion. The exhibits attached to the opposition demonstrate that Defendant 531 fixed some but not all of the deficiencies previously identified in the May 2026 order. The responding party is now listed as Defendant 531 and the verifications comport with CCP 2015.5. The signatures remain unintelligible, however, and Defendant 531 offers no explanation for its apparent inability to have Mr. Benelisha provide a legible signature.

There are substantive deficiencies in the responses. Defendant 531 provides no response to Form Interrogatory No. 12.4. Defendant 531 provides a one paragraph response to Form Interrogatory No. 15.1, even though it listed 26 affirmative defenses in its answer. Defendant also provided responses to special interrogatories and document requests that Plaintiff contends do not provide the complete set of information sought. Notably, while Defendant 531 contends the issue of the protective order is "moot" because it produced documents without a protective order, its written responses to several requests still conditions production of documents on the entry of a protective order. While Defendant 531's responses remain deficient, at least now it has served verified written responses to all the requests except Form Rog 14.1. Defendant 531 is correct that Plaintiff's recourse to responses that it believes are deficient is to move to compel further responses. The Court expects the parties to first schedule and hold an IDC with the Court regarding any disputed issues. The Court will discuss the scheduling of an IDC with the parties at the hearing.

Defendant 531 has utterly ignored the Court's monetary sanctions orders. Defendant 531 has not paid any of the \$8450 in discovery sanctions imposed by the Court in July 2025 and February 2026. (Plaintiff's reply notes that Defendant 531 also did not pay the \$3,600 ordered by the Court in May 2026, but Plaintiff did not include that amount in its moving papers so the Court does not consider the non-payment of that amount in this order.)

Defendant 531 contends, as it has in the past, that it is unable to pay the sanctions. Its owner states that the restaurant is “struggling” and “in default on multiple financial obligations,” but beyond those conclusory and vague statements, Defendant 531 provides no evidence to support such a claim in opposition to this motion and it has never provided such evidence. The Court therefore does not find Defendant 531’s purported inability to pay persuasive, nor is it aware of any legal basis for a party to ignore discovery monetary sanctions orders on the basis of inability to pay.

The Court concludes that Defendant 531’s failure to live up to its financial obligations is a willful violation of this Court’s orders. The Court first issued monetary sanctions in July 2025 and rather than pay those sanctions and serve appropriate responses, Defendant 531 has prolonged and escalated this discovery battle for over a year. In doing so, it has dug itself deeper and deeper into a hole regarding monetary sanctions as it repeatedly failed to provide verified written discovery responses until just a few weeks ago. The prior monetary sanctions orders have seemingly had no effect on Defendant 531 because it just disregards them.

The Court therefore exercises its discretion to move up the chain of discovery sanctions under CCP Section 2023.030 and order evidence sanctions against Defendant 531. As noted above, Defendant 531 has failed to provide a substantive response to Form Rog 15.1; therefore, a proportional evidence sanction is imposed prohibiting Defendant 531 from introducing matters related to any of its purported affirmative defenses into evidence. The Court denies the request for terminating, issue, and further monetary sanctions at this time, though it notes that Defendant 531 remains non-compliant with the Court’s orders unless and until it pays the outstanding monetary sanctions orders.

Conclusion

The motion for terminating, issue, evidence, and/or monetary sanctions is granted in part and denied in part. The Court issues evidence sanctions prohibiting Defendant 531 from introducing matters related to any of its purported affirmative defenses into evidence.